

Tentative Rulings for August 14, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR RELIEF FROM DEFAULT PURSUANT TO CODE OF CIVIL PROCEDURE § 473(B) BY ALYSSA WINSTEAD

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made “no more than six months after entry of judgment.” (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.)

Mandatory relief only applies to defaults and dismissals and is not available for acts resulting in a judgment against the client such as (1) failing to oppose a dispositive motion (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 148-149), (2) failure to meet the burden of proof (*Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1397), (3) failure to disclose an essential witness (*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 484), or (4) failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321).

Discretionary relief is available not just from defaults, default judgments, and dismissals, but may also to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Summary judgments are neither defaults, nor default judgments, nor dismissals (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1417, citing *English*, supra, 94 Cal.App.4th at 133). Thus, mandatory relief is not applicable in this situation. As to discretionary relief, Defendant points to denial of such relief in the *Huh* matter. However, in that decision, the court noted that appellant waited more than three months to file a motion for relief, and the motion was filed after a notice of appeal and motion for new trial were abandoned or vacated. *Huh* at 1420-1421. Here, Plaintiff filed their motion for relief within a week of the court’s ruling on the motion for summary judgment.

As to excusable neglect, Plaintiff's declaration states that he miscalendared the motion for July 25th instead of June 25th. The court finds this mistake falls under the "typo" category referred to in *Huh*, and is distinguished from a party's unawareness of a motion at all. *Huh* at 1424.

Plaintiff's Motion for Relief GRANTED.

Summary judgment in favor of Defendant Yarana, Inc. is set aside.

Plaintiff to file opposition to the Motion for Summary Judgment, and accompanying documents, with the court within 5 days.

Motion for Summary Judgment is set for 9.10.26.

Reply to be filed by Defendant Yarana, Inc. no later than 11 days prior to the hearing date.

The court shall award reasonable compensatory legal fees and costs to Defendant Yarana, Inc., upon noticed motion, for expenses related to the motion for relief.

Trial Setting Conference set for 9.10.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503111	ALEXANDER VS MED FOR AMERICA INC. DBA JEETER	MOTION TO COMPEL PLAINTIFF ANIAYA ALEXANDER TO RESPOND TO REQUEST FOR PRODUCTION, SET ONE, BY MED FOR AMERICA INC. DBA JEETER; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

No Opposition filed by Plaintiff Alexander.

Motion to Compel Plaintiff's Responses to Request for Production, Set One, GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$222.50 (\$325/hour for 0.5 hours + \$60 costs) AWARDED against Plaintiff Alexander.

Case Management Conference continued to 10.20.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503111	ALEXANDER VS MED FOR AMERICA INC. DBA JEETER	HEARING RE: MOTION TO COMPEL PLAINTIFF ANIAYA ALEXANDER TO RESPOND TO SPECIAL INTERROGATORIES, SET ONE, BY MED FOR AMERICA INC. DBA JEETER; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

No Opposition filed by Plaintiff Alexander.

Motion to Compel Plaintiff's Responses to Special Interrogatories, Set One, GRANTED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$222.50 (\$325/hour for 0.5 hours + \$60 costs) AWARDED against Plaintiff Alexander.

Case Management Conference continued to 10.20.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503111	ALEXANDER VS MED FOR AMERICA INC. DBA JEETER	MOTION TO COMPEL TO DEEM THE TRUTH OF MATTERS ADMITTED AND CONCLUSIVELY ESTABLISHED AS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) BY MED FOR AMERICA INC. DBA JEETER; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

No Opposition filed by Plaintiff Alexander.

Motion to Deem the Truth of Matters Admitted as Specified in Requests for Admission, Set One, GRANTED.

The truth of the matters specified in Defendant's Request for Admission, Set One, are deemed admitted.

Sanctions in the amount of \$547.50 (\$325/hour for 1.5 hours + \$60 costs) AWARDED against Plaintiff Alexander.

Case Management Conference continued to 10.20.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503111	ALEXANDER VS MED FOR AMERICA INC. DBA JEETER	MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATOIRES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

No Opposition filed by Plaintiff Alexander.

Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One, GRANTED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$222.50 (\$325/hour for 0.5 hours + \$60 costs) AWARDED against Plaintiff Alexander.

Case Management Conference continued to 10.20.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2203638	WHITLEY'S CONSTRUCTION VS BOTTOMLEY	DEFENDANT/CROSS-COMPLAINANT BOTTOMLY'S MOTION FOR LEAVE TO FILE FIRST AMENDMENT TO ANSWER

Tentative Ruling: No tentative ruling. A hearing shall be conducted.